

COURT ONLINE COVER PAGE

IN THE LABOUR COURT OF SOUTH
AFRICA HELD AT CAPE TOWN

CASE NO: **2026-080903**

In the matter between:

Daniel Armstrong

Plaintiff / Applicant

and

City Of Cape Town

Defendant / Respondent

Referrals or Statement of claim

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ELECTRONICALLY SIGNED BY:

**Registrar of The Labour Court,
Cape Town**

STATEMENT OF CLAIM

IN THE LABOUR COURT OF SOUTH AFRICA (HELD AT CAPE TOWN)

Case Number: _____

In the matter between:

DANIEL ARMSTRONG Applicant

and

CITY OF CAPE TOWN Respondent



1. THE PARTIES

1.1 The Applicant is Daniel Armstrong, an adult male, previously employed as a Senior Clerk in the Recreation and Parks Department, with approximately 15 years of service.

1.2 The Respondent is the City of Cape Town, a municipality and employer.

1. JURISDICTION

2.1 This Honourable Court has jurisdiction in terms of section 50 of the Employment Equity Act and section 157 of the Labour Relations Act.

2.2 The dispute was referred to the CCMA under case number WECT21991-25 and remains unresolved. A Certificate of Outcome was issued on 15 January 2026.

2.3 On 31 October 2025, Commissioner Hanekom issued a ruling under the same case number. Having perused the facts and the Applicant's medical condition, the Commissioner identified that the dispute constitutes a claim of unfair discrimination under the Employment Equity Act, falling within the jurisdiction of the CCMA and this Honourable Court (see Annexure A1).

1. NATURE OF THE DISPUTE

3.1 This is a claim for unfair discrimination on the basis of disability.

3.2 The Respondent:

3.2.1 Failed to accommodate the Applicant's disability;

3.2.2 Treated medical incapacity as misconduct;

3.2.3 Created a hostile and humiliating work environment;

3.2.4 Ignored medical evidence, including confirmation from the Respondent's Occupational Medical Practitioner that sufficient information existed to initiate an incapacity process (Annexure B1), thereby worsening the Applicant's condition;

3.2.5 Disregarded medical advice that the Applicant's condition would deteriorate without a transfer.

3.3 The Applicant submits that the Respondent's conduct, including disciplining the Applicant instead of following an incapacity process, was directly linked to the Applicant's disability. The Respondent failed to reasonably accommodate the Applicant's condition and instead treated the consequences of the disability as misconduct, thereby constituting unfair discrimination on the basis of disability.

1. MEDICAL CONDITION AND EMPLOYER KNOWLEDGE

4.1 The Applicant has been under psychiatric care since 2016.

4.2 The Applicant suffers from Bipolar Disorder II and early vascular dementia, confirmed by MRI on 14 May 2024.

4.3 Medical specialists, including Dr Judy Ludwick and Dr Anton Krüger, recommended a transfer to a lower-stress environment (Annexures C1, K1).

4.4 The Respondent was aware of the Applicant's condition through medical reports and correspondence.

4.4.1 The Respondent's knowledge is further evidenced by correspondence and medical documentation submitted by the Applicant (Annexures B1, E1, F1, H1, J1, K1).

4.5 On 7 January 2025, the Respondent's Occupational Medical Practitioner, Dr Wayne Jones, confirmed that sufficient information existed for an incapacity assessment (Annexure B1).

4.6 Despite this, the Respondent failed to follow an incapacity process.

4.7 The Applicant was medically certified unfit for work from 23 December 2024 to 7 January 2025 due to illness, including psychosis (Annexure F1).

4.7.1 During this period, the Applicant experienced severe psychological distress, which was not treated as a medical incapacity but instead resulted in disciplinary action.

4.8 Despite this evidence, the Respondent disciplined the Applicant for absence during this medically certified period.

4.9 The Applicant was further advised by Dr Huwge that he should not return to work due to his condition (Annexure J1).



1. HARASSMENT AND HOSTILE WORK ENVIRONMENT

5.1 On 9 November 2021, the Applicant was publicly humiliated in a workplace WhatsApp group referred to as “Toilet Kakkers” (Annexure D1).

5.2 The Applicant was subjected to derogatory and humiliating conduct, as evidenced in WhatsApp communications (Annexure D1).

5.3 Superintendents engaged in intimidation and isolation, mocking the Applicant’s disability.

5.4 The Applicant’s manager stated that she did not trust him.

5.5 This conduct impaired the Applicant’s dignity and created a hostile working environment.



1. FAILED INTERNAL RESOLUTION

6.1 The Applicant attempted to resolve the matter internally via HR and the Head of Labour Relations, Matthew Le Grange.

6.2 These requests were ignored or not properly addressed (Annexure H1).

6.3 The Applicant’s union also failed to provide necessary assistance (Annexure M1).

1. DISCIPLINARY IRREGULARITIES

7.1 The Respondent pursued disciplinary action instead of incapacity support.

7.1.1 Despite the existence of medical evidence and recommendations supporting incapacity management (Annexures B1, C1, F1, J1, K1), the Respondent proceeded with disciplinary action instead of following an incapacity process.

7.2 The Respondent has failed or refused to provide verbatim minutes of the hearing, severely prejudicing the Applicant.

7.3 The Applicant respectfully requests that the Respondent be directed to provide the full hearing record (Annexure I1).

7.3.1 The Applicant notes that the Respondent referred him to an internal process to obtain the record; however, the Applicant elected to seek the record through external channels to avoid further delay and prejudice, given the Respondent’s prior conduct and lack of cooperation.

7.4 The Applicant was found guilty, received an 8-day unpaid suspension, and was warned not to rely on his medical condition (Annexure G1).

7.5 The Applicant was placed on unpaid sick leave after exhausting his sick leave, followed by authorised unpaid leave, resulting in a complete loss of income for January, further prejudicing the Applicant.

1. FAILURE TO ACCOMMODATE

- 8.1 No reasonable accommodation, transfer, or adjustment of duties was made.
- 8.2 This failure occurred despite repeated disclosures and requests for assistance and accommodation by the Applicant (Annexures E1, H1, L1).
- 8.3 The Respondent refused to assist with obtaining a specialist report, even where the Applicant offered to pay via salary deduction (Annexure E1).

1. FAMILY TRAUMA AND DISREGARD

9.1 On or about the date of an incident involving the Applicant's 15-year-old daughter being a victim of a violent mugging, the Applicant requested emergency leave or, alternatively, permission to work from home (Annexure L1).



- 9.2 The Respondent's manager refused this request, demanding an EAP reference number instead of providing support.
- 9.3 The Applicant escalated the matter to the Head of Labour Relations, Matthew Le Grange, seeking a reasonable solution.
- 9.4 No response was received.
- 9.5 This conduct worsened the Applicant's medical condition and impaired his dignity.

1. SELF-REPRESENTED LITIGANT STATUS

- 10.1 The Applicant appears in person, having been unable to secure pro bono legal assistance.
- 10.2 The Applicant has prepared these documents to the best of his ability, without the benefit of formal legal training.

1. RELIEF SOUGHT

- 11.1 Compensation equivalent to 12 months' remuneration, being R332,774.00.
- 11.2 Damages for impairment of dignity and emotional harm arising from the Respondent's conduct.
- 11.3 Repayment of the 8-day unpaid suspension (approximately R911.71 per day).
- 11.4 Payment of remuneration lost during the period of unpaid sick leave and authorised unpaid leave.
- 11.5 Further and/or alternative relief as this Honourable Court deems fair and equitable.
- 11.6 Costs of suit, in the event that the Respondent opposes this claim.

1. ANNEXURES

Annexure A1 – CCMA certificate and ruling

Annexure B1 – Dr Wayne Jones (incapacity)

Annexure C1 – Dr Ludwick report

Annexure D1 – WhatsApp screenshots

Annexure E1 – Emails (work issues)

Annexure F1 – Medical reports

Annexure G1 – Disciplinary outcome

Annexure H1 – HR and labor relations emails

Annexure I1 – Request for hearing record

Annexure J1 – Dr Huwge report

Annexure K1 – Psychiatrists reports recommending transfer

Annexure L1 – Emails about daughter incident

Annexure M1 – Union correspondence

SIGNED: **Daniel
Armstrong** Digitally signed by Daniel
Armstrong
Date: 2026.04.08 09:44:26
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Date: 08.04.2026

DANIEL ARMSTRONG

